

that it substitutes for *Frothingham*, for it seems to me that this new doctrine rests on premises that do not withstand analysis. Accordingly, I respectfully dissent.

I.

It is desirable first to restate the basic issues in this case. The question here is not, as it was not in *Frothingham*, whether "a federal taxpayer is without standing to challenge the constitutionality of a federal statute." *Ante*, at 85. It could hardly be disputed that federal taxpayers may, as taxpayers, contest the constitutionality of tax obligations imposed severally upon them by federal statute. Such a challenge may be made by way of defense to an action by the United States to recover the amount of a challenged tax debt, see, *e. g.*, *Hylton v. United States*, 3 Dall. 171; *McCray v. United States*, 195 U. S. 27; *United States v. Butler*, 297 U. S. 1; or to a prosecution for willful failure to pay or to report the tax. See, *e. g.*, *Marchetti v. United States*, 390 U. S. 39. Moreover, such a challenge may provide the basis of an action by a taxpayer to obtain the refund of a previous tax payment. See, *e. g.*, *Bailey v. Drexel Furniture Co.*, 259 U. S. 20.

The lawsuits here and in *Frothingham* are fundamentally different. They present the question whether federal taxpayers *qua* taxpayers may, in suits in which they do not contest the validity of their previous or existing tax obligations, challenge the constitutionality of the uses for which Congress has authorized the expenditure of public funds. These differences in the purposes of the cases are reflected in differences in the litigants' interests. An action brought to contest the validity of tax liabilities assessed to the plaintiff is designed to vindicate interests that are personal and proprietary. The wrongs alleged and the relief sought by such a plaintiff are unmistakably private; only secondarily are his interests representative of those of the general population. I take